

24STCV23110 24STCV23110

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-24

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Case Number: 24STCV23110 Hearing Date: June 24, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

Hailey villa

;

Plaintiff,

vs.

hyundai motor america

, et al.;

Defendants.

Case

No.:

24STCV23110

Hearing

Date:

June
24, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

plaintiff's motion for payment of attorney's
fees and reimbursement of costs and expenses

MOVING PARTY: Plaintiff Hailey Villa

RESPONDING PARTIES: Defendant Hyundai Motor America

Motion for Attorneys' Fees, Costs, and Expenses

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

JUDICIAL
NOTICE

The court denies Defendant's request for
judicial notice of Exhibits G through I.

The court grants Defendant's request for judicial notice of Exhibits K
and M through O.

DISCUSSION

Plaintiff Hailey Villa ("Plaintiff") moves for attorney's fees and
reimbursement of costs and expenses pursuant to the settlement agreement in
this matter and under Civil Code section 1794 subdivision (d) as the designated
prevailing party.

First, the court finds—and defendant Hyundai Motor America

(“Defendant”) does not dispute—that Plaintiff is entitled to recover attorney’s fees and costs from Defendant pursuant to the Song-Beverly Act and the parties’ settlement. (Declaration of Jordan K. Sannipoli (“Sannipoli Decl.”), Ex. E; Civ. Code, § 1794, subd. (d) [“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action”].)  

Second, the court finds that Plaintiffs have established, as to the attorney’s fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar of \$24,031.50.

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . .   The reasonable hourly rate is that prevailing in the community for similar work.   The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.”   (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method”].)   “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”   (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)         

The court finds that the reasonable hourly rates for the legal staff that performed work in this action are as follows: (1) \$695 for attorney Bickel (“BB”); (2) \$645 for attorney Sannipoli (“JS”); (3) \$590 for attorney Myers (“JM”); and (4) \$290 for paralegals and legal assistants installed “CW”, “MT”, and “MP”. [1] (Sannipoli Decl., ¶ 42.)

The court has considered (1) the billing records of Plaintiff’s legal staff, and (2) the objections to specific entries in Defendants’ opposition papers. (Sannipoli Decl., Ex. A; Declaration

of Donna Hooper, ¶ 2; Exh. A.) The court finds that Plaintiff's legal staff reasonably expended a total of 41.8 hours to commence and prosecute this action and to prepare the pending motion.

The court therefore finds that Plaintiff has established a lodestar figure of \$24,031.50 ((21.7 hours x Sannipoli's \$645 hourly rate = \$13,996.50) + (12.4 hours x Myer's \$590 hourly rate = \$7,316.00) + (1.2 hours x Bickel's \$695 hourly rate = \$834.00) + (6.5 hours x Paralegal & Legal Assistant's \$290 hourly rate = \$1,885.00)). 22

Third, the court finds that (1) Plaintiff has supported their request for costs in the amount of \$741.06, and (2) Defendant did not contest the costs.

ORDER

The court grants plaintiff Hailey Villa's motion for attorneys' fees, costs, and expenses as follows.

Pursuant to Civil Code section 1794, subdivision (d), the court orders that plaintiff Hailey Villa shall recover from defendant Hyundai Motor America attorney's fees, costs, and expenses in the total amount of \$24,772.56, consisting of \$24,031.50 in attorney's fees and \$741.06 in costs and expenses.

The court orders plaintiff Hailey Villa to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 24, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

Although some attorneys have different hourly rates for different years, the court has considered the qualifications, experience, and skill of counsel to determine one reasonable hourly rate for each attorney.